

SECTION I.

OF RESULTING TRUSTS WHERE THERE IS A DISPOSITION OF THE
LEGAL AND NOT OF THE EQUITABLE INTEREST.

1. General rule.—The general rule is, that wherever, upon a conveyance, devise, or bequest, it appears that the grantee, devisee, or legatee was intended to take the legal

given expressly for a particular purpose and subject to a particular purpose; *Downer v. Church*, 44 N. Y. 647; *McElroy v. McElroy*, 113 Mass. 509; *Hale v. Horne*, 21 Gratt. 112; if it appear that the donee was not intended to receive an equitable interest, he will not; *King v. Mitchell*, 8 Pet. 349.

Where purpose of trust fails.—Where a trust to be declared never is declared or the objects or purposes of the trust fail a trust will result to the settlor; *Hawley v. James*, 5 Paige, 318; *Sturtevant v. Jaques*, 14 Allen, 526; *Shaw v. Spencer*, 100 Mass. 388; *Dillaye v. Greenough*, 45 N. Y. 438; *Pratt v. Beaupre*, 13 Minn. 187; *Kerlin v. Campbell*, 15 Pa. St. 500; *Easterbrooks v. Tillinghast*, 5 Gray, 17.

Trust for indefinite and uncertain purpose.—If too vague to be carried out, a trust results to the settlor, his heirs or representatives; 2 Pom. Eq. Jur. § 1032; *Nichols v. Allen*, 130 Mass. 211; *Shaw v. Spencer*, 100 Mass. 388; *Sturtevant v. Jaques*, 14 Allen, 526; *Hawley v. James*, 5 Paige, 318.

Lapse of time.—Mere lapse of time no bar if good excuse is given, but otherwise equity will not enforce after great delay; *Harris v. McIntyre*, 118 Ill. 275; after fifteen years should be most satisfactory; *Heneke v. Floring*, 114 Ill. 554; relief refused after three years; *Rogers v. Saunders*, 16 Me. 92; 33 Am. Dec. 635; see also *Midmer v. Midmer*, 26 N. J. Eq. 299; *Jennings v. Shacklett*, 30 Gratt. 765; *Kennedy v. Kennedy*, 25 Kan. 151; *Hennessey v. Walsh*, 55 N. H. 515; *Best v. Campbell*, 62 Pa. St. 478; *Dow v. Jewell*, 18 N. H. 340; 45 Am. Dec. 371. See *post* Statute of Limitations.

Voluntary conveyance.—No trust results because of a conveyance without consideration; *Ownes v. Ownes*, 8 C. E. Green, 60; *Groff v. Rohrer*, 35 Md. 327; *Burt v. Wilson*, 28 Cal. 632; and parol is not admissible to control or contradict the consideration; *Philbrook v. Delano*, 29 Me. 410; *Randall v. Phillips*, 3 Mason, 388; *Rathbun v. Rathbun*, 6 Barb. 98; *Farrington v. Barr*, 36 N. H. 86; nor to vary or add to the written instrument; *Cairns v. Colburn*, 104 Mass. 274; *Gerry v. Stimson*, 60 Me. 186; *Blodgett v. Hildreth*, 103 Mass. 484; *Bartlett v. Bartlett*, 14 Gray, 278; *Leman v. Whitley*, 4 Russ. 423; *Sprague v. Woods*, 4 Watts & S. 192; a conveyance in fee with warranty estops the grantor from alleging an interest in the purchase-money which would raise a resulting trust to him; *Squire v. Harder*, 1 Paige Ch. 494; 19 Am. Dec. 446; *Philbrook v. Delano*, 29 Me. 410; creditors could avoid such a deed; *Baldwin v. Campfield*, 4 Halst. Ch. 891; *Dunnica v. Coy*, 28 Mo. 525; if made for a fraudulent or illegal purpose, no trust will result to the grantor; *Wilson v. Cheshire*, 1 McCord, Ch. 233; *Bryant v. Mansfield*, 22 Me. 360; *Muller v. Davis*, 50 Mo. 572; *Hutchins v. Heywood*, 50 N. H. 488; *Cutler v. Tuttle*, 19 N. J. Ch. 553.

Parol proof. Statute of Frauds.—The Statute of Frauds affects only trusts created or declared by the parties, and not those arising by operation of law; 1 Perry on Trusts, § 137; *Ward v. Armstrong*, 84 Ill. 151; *Black v. Black*, 4